

Short title.

2. This Act may be cited as the Superannuation (Prison Officers) Act, 1919, and the Superannuation Acts, 1834 to 1914, and this Act may be cited together as the Superannuation Acts, 1834 to 1919.

CHAPTER 68.

An Act to amend the Law relating to the Royal Irish Constabulary and Dublin Metropolitan Police.

[20th November 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Constitution of
representative
police bodies.

1.—(1) For the purpose of enabling the members of the Royal Irish Constabulary and Dublin Metropolitan Police to consider and bring to the notice of the chief officer and of the Lord Lieutenant all the matters affecting their welfare and efficiency, other than questions of discipline and promotion affecting individuals, there shall be established in each force, in accordance with rules made by the Lord Lieutenant, a representative body or bodies for all or each of the ranks below the rank of assistant inspector general in the case of the Royal Irish Constabulary, and for all or each of the ranks below the rank of chief superintendent in the case of the Dublin Metropolitan Police, consisting of representatives elected by the members of the ranks or rank represented from amongst their number in manner prescribed by those rules.

(2) Each representative body shall be entirely independent of and unassociated with any body or person outside the force which it represents.

Prohibition
against
constables
being members
of trade unions.

2.—(1) Subject as aforesaid, it shall not be lawful for a member of either police force to become, or after the expiration of one month from the passing of this Act to be, a member of any trade union, or of any association of which the objects or one of the objects are or is to control or influence the pay, pensions, or conditions of service of any police force ; and any member of either force who contravenes this provision shall be disqualified for continuing to be a member of the force ; and if any member of either force continues to act as such after becoming so disqualified he shall forfeit all pension rights and be disqualified for being thereafter employed in any police force :

Provided that, where a man was a member of a trade union before becoming a member of the force, he may, with the consent of the chief officer, continue to be a member of that union during the time of his service in the force.

(2) If any question arises whether any body or association is a trade union or association to which this section applies, the question shall be determined by the Lord Lieutenant.

3. If any person causes, or attempts to cause, or does any act calculated to cause disaffection amongst the members of any police force, or induces, or attempts to induce, or does any act calculated to induce any member of a police force to withhold his services or to commit breaches of discipline, he shall be guilty of a misdemeanour, and shall be liable on conviction on indictment to imprisonment, with or without hard labour, for a term not exceeding two years, or on summary conviction, to imprisonment, with or without hard labour, for a term not exceeding three months, or to a fine not exceeding fifty pounds, or to both such imprisonment and fine, and in either case, if a member of a police force, shall forfeit all pension rights and be disqualified for being a member of any police force.

Penalty on
persons
causing dis-
affection, &c.

4.—(1) It shall be lawful for the Lord Lieutenant, with the concurrence of the Treasury, to make orders as to the pay, pensions, and allowances of members of either police force, and by any such order to prescribe rates and scales of pay, pensions, and allowances (including conditions applicable thereto) as respects all the members of the force to which the order relates or as respects any rank, class or grade in the force, and, subject to the provisions of the order, any rates, scales, and conditions thereby prescribed shall have effect as from the date therein specified in substitution for the rates, scales, and conditions in force immediately before the making of the order, whether such last-mentioned rates, scales, or conditions were prescribed by statute or any previous order under this section or otherwise :

Power of Lord
Lieutenant to
regulate pay,
&c., of either
force.

Provided always that any person who was a member of either police force on the first day of April nineteen hundred and nineteen shall be deemed to be a member of such force for the purposes of this section.

(2) A draft of any order proposed to be made under this section shall be submitted to the representative body or bodies representing any rank or ranks affected, and before making the order the Lord Lieutenant shall consider any representations made by such body or bodies.

(3) Any order made under this section shall be laid before both Houses of Parliament within forty days next after it is made if Parliament is then sitting, or, if not, within forty days after the commencement of the then next ensuing session, and, if an address is presented to His Majesty by either of those Houses within the next subsequent fourteen days on which that House has sat next after any such order is laid before it praying that any such order may be annulled, His Majesty may thereupon by Order in Council annul the same, and the order so annulled

shall forthwith become void, but without prejudice to the validity of any proceedings or acts which may, in the meantime, have been taken or done under the order.

56 & 57 Vict.
c. 66.

Section one of the Rules Publication Act, 1893, shall not apply to any such order.

(4) Subject as aforesaid, any order made under this section shall have effect as if enacted in this Act, but may be revoked or varied as occasion requires by any subsequent order so made.

Amendment of
4 & 5 Geo. 5.
c. 84, s. 1.

5. Where a member of either police force to whom subsection (1) of section one of the Irish Police Constables (Naval and Military Service) Act, 1914, as extended by any subsequent enactment, applies is unable owing to injuries, ill-health, or other reasonable cause to return to the police force immediately after the termination of his service in the Navy, Army, or Air Force, the interval between the termination of such service and his return to the police force may, if the Lord Lieutenant so directs, be reckoned as a period of service in the police force in calculating any police pension, allowance, or gratuity that may be granted to him or his dependants.

Amendment of
5 & 6 Geo. 5.
c. 32.

6. Subsection (2) of section one of the Irish Police (Naval and Military Service) Act, 1915, shall have effect and shall be deemed always to have had effect as if for the words "pensions" and allowances equal to one half the amount payable out of "naval or military funds" there were substituted the words "pensions and allowances in addition to the amount payable out of naval, military, or air-force funds," and as if it authorised pensions and allowances granted thereunder to be reckoned on the rate of pay which the man would have been receiving at the date of his death or disablement had he then been a member of the police force.

Amendment of
6 & 7 Geo. 5.
c. 59, s. 2.
6/11

7. Subsection (4) of section two of the Constabulary and Police (Ireland) Act, 1916, shall have effect and shall be deemed always to have had effect as if the following proviso were inserted at the end thereof, namely:—

"Provided that, in the case of a constable promoted as aforesaid, and retiring at any time after the first day of September nineteen hundred and eighteen, the pension shall not be less than if the constable had continued in his former rank."

Penalty on
unauthorised
use of police
uniform.

8. If any person not being a member of a police force wears without the permission of the chief officer the uniform of either police force, or any dress having the appearance or bearing any of the distinctive marks of such uniform, he shall, on summary conviction, be liable to a fine not exceeding ten pounds:

Provided that this section shall not prevent persons from wearing any uniform or dress in the course of a stage play or music hall or circus performance.

9.—(1) In this Act, unless the context otherwise requires,— Interpretation
and short
title.

The expression “chief officer” means in the case of the Royal Irish Constabulary the Inspector-General, and in the case of the Dublin Metropolitan Police the Chief Commissioner;

The expression “pensions” includes gratuities; and

The expression “pensions and allowances of members” includes pensions and allowances of widows or children of members.

For the purpose of the provisions of this Act as to representative bodies, a detective officer of the Dublin Metropolitan Police shall be deemed to belong to the same rank as a constable of that force.

(2) This Act may be cited as the Constabulary and Police (Ireland) Act, 1919.

CHAPTER 69.

An Act to provide for the establishment of an Industrial Court and Courts of Inquiry in connection with Trade Disputes, and to make other provision for the settlement of such disputes, and to continue for a limited period certain of the provisions of the Wages (Temporary Regulation) Act, 1918. [20th November 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

PART I.

INDUSTRIAL COURTS.

1.—(1) For the purpose of the settlement of trade disputes in manner provided by this Act, there shall be a standing Industrial Court, consisting of persons to be appointed by the Minister of Labour (in this Act referred to as “the Minister”), of whom some shall be independent persons, some shall be persons representing employers, and some shall be persons representing workmen, and in addition one or more women. Constitution
of Industrial
Court.

(2) A member of the Industrial Court shall hold office for such term as may be fixed by the Minister at the time of his appointment.